

25STCV26972 25STCV26972

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Aaron Celious v. Ana Gabriela Lopez, et al.

Friday,

September 11, 2026

[TENTATIVE] ORDER GRANTING

MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (Res. No. -9844)

I.

BACKGROUND

The complaint alleges

Defendants, Plaintiff's neighbors, deprived Plaintiff from utilizing public roads and sidewalks, engaged in overly loud nuisance activities, improperly operated a mobile car wash, defamed Plaintiff and generally harassed Plaintiff.

Plaintiff's complaint asserts causes of action for public nuisance, private nuisance, defamation, false light, intentional infliction of emotional distress, civil harassment and negligence.

Plaintiff moves for an

order deeming Requests for Admission (Set Two), RFA Nos. 29 through 49 admitted against Defendant Lizette Navarro.

II.

LEGAL STANDARDS

A

response to requests for admission is due within 30 days after service. (Code Civ. Proc., §2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: (a) the party to whom the requests for admission are directed waives any objection to the requests. . . (b) [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. . ." (Code Civ. Proc., § 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. . ." (Code Civ. Proc., § 2033.280, subd. (c).)

"It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

III.

DISCUSSION

Plaintiff served Defendant Lizette Navarro with Requests for Admission (Set Two), RFA Nos. 29 through 49, on March 25, 2026. (Celious Dec., ¶1, Ex. A.) Navarro has not responded. (Id. at ¶13.) Navarro has not filed an opposition to this motion, nor has she filed any evidence that she served Plaintiff with responses prior to the hearing. For this reason, Plaintiff is entitled to an order deeming RFA Nos. 29 through 49 admitted against her.

IV.

CONCLUSION

Based on the foregoing, Plaintiff's Motion to Deem Requests for Admission Admitted is GRANTED.